

24STCV12187 24STCV12187

County: los-angeles

Division: Civil Law and Motion

Department: 414

Hearing date: 2026-09-18

Source URL:

https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=LAM%2C414%2C09%2F18%2F2026

Source SHA-256: 23d8f0d4c3003e712befa78388c8cca60033788fc865b4de56d2f9bbe080d0ab

Case Number: 24STCV12187 Hearing Date: September 18, 2026 Dept: 414

24STCV12187

Arno Kuigoua v. The Matthew L. Tuck & Associates, PLC, et al.

Thursday,

September 18, 2026

[TENTATIVE] ORDER GRANTING MOTION FOR LEAVE TO FILE FIRST AMENDED COMPLAINT
(5199)

I. BACKGROUND

The

complaint alleges claims for legal malpractice for Defendants' alleged failure to petition the California Supreme Court challenging the Court of Appeal's denial of Plaintiff's petition for a writ of mandate. Plaintiff retained Defendants pursuant to an April 16, 2021 contract. The underlying litigation arose from Plaintiff's administrative challenge of his termination as a registered nurse with the Department of Veteran's Affairs. Plaintiff alleges claims for professional malpractice, breach of contract, and breach of fiduciary duty.

The

Hon. Jon R. Takasugi sustained Defendants' demurrer to the complaint without leave to amend and dismissed the action. (M.O. 12/13/24.) The Second District Court of Appeal reversed. (Remittitur filed 3/25/26.)

Prior

to this case being transferred to Department 414, Judge Takasugi related this case to 24STCV33723 Arno Patrick Kuigoua v. Corey Parker, et al. ("the Parker Action").

Plaintiff alleges that the Parker Defendants are appellate lawyers, who Plaintiff retained on August 25, 2020 to prepare and file a writ petition with the California Supreme Court to review an order by the Court of Appeal. (Parker Action Complaint, ¶¶ 10-13.)

II. ARGUMENTS

Plaintiff

requests leave to file a first amended complaint to clarify operative facts, conform the pleading to the appellate ruling, and plead facts related to the Memorandum of Understanding ("MOU") that outlined a deal under which Plaintiff agreed to release all claims against Defendants and forego filing a lawsuit. (Remittitur filed 3/25/26, p. 3.) Plaintiff proposes to allege additional causes of action for fraud, concealment, promissory fraud, negligent misrepresentation, unfair competition, equitable relief and declaratory relief concerning the disputed MOU/release.

Plaintiff

argues the amendments will promote judicial economy by framing all disputed issues in one pleading. Defendants contend the motion is procedurally defective and the amendment will result in prejudice, Plaintiff does not offer any reasons for the delay, Plaintiff has not been diligent and has created overlapping litigation. Defendants argue the new tort claims and claims for punitive damages are defective and amendment will be futile. Defendants assert that if leave is granted it should be narrowly conditioned.

III. LEGAL STANDARDS

The court can permit amendment of any

pleading on any terms and "in other particulars" as may be proper. (Code Civ.

Proc., § 473(a).) The court's discretion will usually be exercised liberally to

permit amendment of the pleadings. (Nestle v. City of Santa Monica (1972) 6 Cal.3d 920, 939.) If the motion is timely made, and

the granting of the motion will not result in prejudice to the opposing party,

it is error to refuse permission to amend. (Morgan v. Superior Court of Cal. In and For Los Angeles County (1959) 172 Cal.App.2d 527, 530.) Amendments are liberally permitted

up to the date of trial or during trial where no prejudice is shown. (Atkinson v. Elk Corp. (2003) 109 Cal.App.4th 739, 761.)

IV.

DISCUSSION

A.

The motion is not procedurally defective.

The

motion complies with the requirements of Cal. Rules of Court, rule 3.1324.

Plaintiff provides a red-lined version of the proposed pleading showing additions and deletions. (Mot. Ex. B.) Plaintiff's declaration explains the amendments and reasons therefor, chiefly that Plaintiff did not allege facts concerning the parties' MOU, which was the basis for the trial Court's order sustaining demurrer on grounds Plaintiff had released all claims.

The

Court of Appeal reversed and remanded because the MOU was improperly considered by the trial court, who also resolved questions of fact based on facts represented by counsel and facts that did not appear in the four corners of the pleading. (Remittitur p. 8.)

Plaintiff

declares the facts concerning the proposed new allegations were discovered over time, and Plaintiff desires to conform the pleading after the Court of Appeal's remand. Plaintiff could not make the amendments earlier because the trial court dismissed the action after sustaining demurrer. (P's decl.).

B.

Defendants have not shown unreasonable delay.

The

Court of Appeal issued its remittitur on March 25, 2026. After filing an Affidavit of Prejudice against Judge Takasugi, which the court granted, Plaintiff filed this motion for leave to amend on June 1, 2026. Plaintiff did not have an opportunity to seek leave to amend earlier given that the action had been previously dismissed without leave to amend.

C. Defendants

have not shown substantial prejudice.

Defendants

argue they will be required to pursue additional discovery, prepare new defenses, alter litigation strategy or seek continuance of trial. However, it does not appear from the Court's record that the parties have conducted any discovery given the case was at the demurrer stage when it was dismissed.

Defendants

cite *Magpali v. Farmers Group, Inc.*

(1996) 48 Cal.App.4th 471, which is

inapposite. There, Plaintiff sought to amend the complaint three days before trial by expanding the claims asserted and opening up entirely new fields of inquiry "without any satisfactory explanation as to why this major change in point of attack had not been made long before trial. (*Magpali* at 487.)

Defendants

contend they will need to "reopen" discovery. It is not clear what discovery was conducted in the related Parker Action. After filing a demurrer, the Parker Defendants filed a motion to declare Plaintiff a vexatious litigant on April 21, 2025, resulting in an automatic stay of the action until the motion was denied on July 25, 2025. (Code Civ. Proc., § 391.7 subd. (c).)

Thereafter, the Parker Defendants demurred to Plaintiff's complaint and moved to consolidate the related matters. The Hon. Tony L. Richardson declined to rule on the demurrer and other matters given Plaintiff's representation that Plaintiff would file a notice to relate the cases. (Parker action, M.O. 1/29/26.) In any event, Plaintiff moves to amend the pleading in this action.

Defendants

argue that this action is "nearly identical" to the Parker action which asserts malpractice in a similar petition-for-review matter. Defendants assert Plaintiff knew Parker's identity before filing this motion. This is not a basis for denying leave to amend. Defendants raise concern over duplicative discovery and inconsistent rulings which are equally not grounds for denying leave to amend.

To

the extent Defendants argue that the new claims are defective, the court does not consider the validity of the amendments at this stage. The "better course is to allow a plaintiff to amend the complaint and then let the parties test its legal sufficiency in other appropriate proceedings." (*Brown v. Ralphs Grocery Co.* (2018) 28 Cal.App.5th 824, 843.) For that reason, the Court denies Defendants' request to narrowly condition the amended pleading to limit

the proposed claims before considering the merits of a demurrer.

V. CONCLUSION

Based

on the foregoing, Plaintiff's motion for leave to file a first amended complaint is GRANTED. Plaintiff is ordered to file the amended pleading within 10 days.